

CURIOSITIES IN AMERICAN HISTORY.

The Green Mountain Boys:

OR

VERMONT AND THE NEW YORK LAND-JOBBER.

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Title: The Green Mountain Boys
or, Vermont and the New York land jobbers

Author: Philip H. Smith

Release date: August 30, 2024 [eBook #74334]

Language: English

Original publication: Pawling: Philip H. Smith, 1885

Other information and formats: www.gutenberg.org/ebooks/74334

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MOUNTAIN BOYS ***

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GREEN MOUNTAIN BOYS:

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VERMONT AND THE NEW YORK LAND JOBBERS

BY

PHILIP H. SMITH,

AUTHOR OF

“ACADIA: A LOST CHAPTER IN AMERICAN HISTORY;”

“HISTORY OF DUCHESS COUNTY;” ETC.

PAWLING, N. Y.:

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GREEN MOUNTAIN BOYS:**

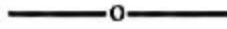
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PREFACE.



In the history of a country whose growth has been under circumstances like our own, every locality abounds in unrecorded deeds of moral heroism as worthy of notice as are many facts and events which have become fixed in the historic literature current among the masses. Even were such deeds to find a place in local history, they will necessarily be circumscribed in their influence, and at best be so hidden among commonplace matter as almost to escape notice; while to attempt giving them the attention they deserve in a general history would be futile.

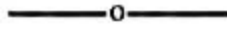
In the present attempt to render a comparatively unknown episode of our country's history the theme of a small volume, both these difficulties will be avoided; and by so giving it the prominence it deserves, thereby afford a better understanding of the inner workings of the stupendous machinery of our system of government. The by-ways of our country's annals are fruitful in just such interesting and instructive themes.

One of the lessons herein taught is that positions of honor and trust are not always proof against cupidity and corruption; or, to speak more plainly, under color of law men have been known to perform the most lawless acts. The story of the Vermont troubles has one rare quality—the poor hard-working settlers were ultimately successful; and for once the cause of the humble cottager prevailed against the machinations of the favorites of royalty.

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INTRODUCTION.



Some one has truthfully remarked that the character of a people is largely determined by the natural features of the country they inhabit. The peasantry of mountainous Switzerland are proverbial for their bravery and hardihood, their strong and innate love of liberty, and their pure and exalted patriotism. Accustomed from infancy to danger, dependent upon their own resources, mingling day by day among the sublimest works of Creation, their aspirations acquire a buoyancy, and their spirits an independence, that leaves an impress on their lives amounting to a national characteristic.

Thus the brave pioneer, inured to hardship, and depending on his ax for shelter, and on his rifle for food and protection from wild beast and lurking Indian, will acquire a fertility of resource and vigor of limb, as in a measure to remunerate him for the privations he endures.

The original settlers of the New Hampshire Grants,—that territory now known as the State of Vermont,—were of this sturdy, fearless, and independent sort. It seemed as though they had drawn inspiration from the snow-clad, storm-riven mountains, at whose base their lowly thatched cabins were nestled. The long and hard winters taxed the energies of the new settlers for the necessities of life, and precluded the introduction of luxuries that only degenerate. The stubborn wilderness was to be felled; the latent productiveness of the soil developed; hand to hand encounters with wild beasts were not infrequent; common safety demanded a unity of strength against the crafty foe, and necessity begat friends at the same time it rendered friendship a mutual safeguard; and this unity of purpose, thus nurtured and sustained, afterward displayed itself in one of the most unique chapters in the annals of American history.

The people of these Grants, known to the world as the Green Mountain Boys, were worthy the wild and romantic country in which they lived, and the stirring times in which they acted. Vermont was never organized as a separate colony under England, and from the first that plucky little

community refused to submit to the domination of the older colonies on her borders. Her people seemed to imbibe a spirit of independence from the free air and the everlasting mountains.

New York claimed a jurisdiction over her soil, and a like demand was put forward by New Hampshire and Massachusetts. But the brave Green Mountain Boys, under the guidance of such natural leaders as the Allens, Baker, Warner, and others of like invincible spirit, kept the greedy land-grabbers at bay. In short, Vermont never had a government other than the supreme will of her own people, nor acknowledged the authority of any earthly potentate, until she was admitted on an equal footing into the Union of States, as the Fourteenth luminary in the blue field of the nation's emblem.

Yet had this people no inconsiderable share in the work of achieving that independence which made the present of our country a glorious possibility. They secured what they believed to be their own rights, at the same time they contributed to the adjustment of the claims of her sister communities.

There is no pretension, in the present pages, to giving what will be new to specialists in Vermont history. But to the general reader, and to the student of the philosophy of human events, there is much, we hope, both new and instructive. The firm bearing of the brave and hardy settlers of the Hampshire Grants, and the important part they played in the War of the Revolution, give to the material of this little book somewhat of a national interest. Indeed, but for timely services of the Green Mountain Boys, it is more than possible the cause of America might have been lost.



Indians fishing by torchlight.

CHAPTER I.

GEOGRAPHICAL OUTLINE AND SETTLEMENT.

Stephen A. Douglas has been credited with the remark that Vermont is an excellent place to emigrate from. Though small in area, with a surface singularly broken by mountain ranges, wracked by frosts and covered with snows five months of the year, yet her internal economy has proved favorable to the growth of both brain and brawn: in the halls of Congress, as well as in the pursuits of science and literature, she maintains her place right gallantly.

That long and irregular lake on the northwest boundary bears the name of the great European discoverer and explorer, Champlain, who here sought, and vainly, for a northwest passage to Cathay. The loveliness of its shores, and the unsurpassed picturesqueness of its islands, endear it to the tourist. Twice it has been the scene of a naval combat.

The Green Mountains,^[A] from which the state takes its name, run lengthwise through the central portion, about midway between the Connecticut River on the east and Lake Champlain on the west. The sides of these mountains are clad with the perpetual verdure of their hardy evergreens, the verdant mosses and winter grasses clinging to their towering summits. The principal streams, rising among these mountains and following the natural declivities, find their way into this river and lake, except those flowing northerly into Lake Memphremagog.

It was not until after the conquest of Canada that any considerable settlements were effected in the territory now known as Vermont. Situate about midway between the French districts on the River St. Lawrence and the New England settlements along the Atlantic coast, it had very naturally become the battle-ground of the contending powers, and a lurking place of their respective Indian allies. The early colonists of Massachusetts and Connecticut, in their frequent expeditions against the French in Canada, and while traversing these woods as hunters and scouting parties, had become

familiar with the fertility of the lands between the Connecticut River and Lake Champlain. As soon as the danger attending their settlement was in a measure removed, by reason of Canada and New England coming under the same King, swarms of emigrants from the adjacent colonies poured into the country, and the most available and valuable portions were immediately taken up; and, as though by magic, the wilderness developed into fruitful fields, and gardens flourished where the wild rabbit had made its home. At the beginning of the Revolution the population was estimated at from twenty to thirty thousand.

If not to be governed at all is to be governed well,—and so it would seem to be in this instance,—the remarkable exemption of the State of Vermont from taxation at the close of the Revolution, as compared with other States, added to the fertility and cheapness of the land, attracted settlers from many of the older communities, resulting in large additions to population and resources.

CHAPTER II.

ORIGIN OF THE LAND TROUBLES.

Vermont, as has been well said, was born in the midst of tumult and the clash of arms. No other State, we can safely affirm, came up out of such tribulation. Her experience is that of a people exposed to the avarice and greed of officials who scruple not to use the necessities of their helpless subjects as a means of securing their own selfish ends.

It was in pursuance to instructions from his Britannic Majesty that Benning Wentworth, Governor of New Hampshire, proceeded, in 1749, to grant lands on the west side of the Connecticut River, in the present State of Vermont, to such persons as would settle and cultivate the same. After the declaration of peace between France and England, Wentworth ordered that a survey be made of the river for sixty miles, and that three tiers of townships be laid out on either side. In 1764 about one hundred and forty townships had been granted to New England settlers.

The lands went under the title of the “New Hampshire Grants,” numbering sixty-eight proprietors, each grant being six miles square, the Governor reserving to himself five hundred acres at the corner of each township. There were also reserved four public rights, viz.: one to the society for the propagation of the Gospel in foreign parts; one for a perpetual glebe to the established Church of England; one for the first settled minister of the Gospel in town; and one for the support of a school. The patentees, that is to say, the possessors, were after ten years to pay ninepence sterling per annum on each hundred acres as quit-rent to his Majesty.

In addition to the five hundred acres at the corner of each township, Governor Wentworth received fees and other emoluments in his official capacity in making these grants. But he was not always to pursue this career of pecuniary prosperity. Other scheming brains, jealous of his rapidly accumulating fortune, sought to deprive him of his monopoly of land giving. This menace lay in the persons of Cadwallader Colden, Lieut.-Gov. of New York, and some associates composed of lawyers and land speculators of New York city.

As an initiative, Lieut.-Gov. Colden issued a proclamation to the settlers on the west bank of the Connecticut, Dec. 28, 1763, arrogating to the government of New York sole jurisdiction over the territory, founding the claim on the grant made by Charles II to the Duke of York in 1664 and 1674, embracing among other parts "all the lands from the west side of the Connecticut River to the east side of the Delaware Bay." Colden at once commenced making grants of land in his newly acquired territory, and by the first of November following, his patents covered a large portion of the lands occupied by the settlers who had just paid for their titles to the Governor of New Hampshire.

Gov. Wentworth now issued a counter proclamation intended to inspire confidence in the grants from New Hampshire, and exhorting the people to be diligent in clearing up their lands, and not be intimidated by the threats of New York. The latter province thereupon made application to the Crown for a confirmation of its claims, falsely and fraudulently averring that such an arrangement would meet the wishes of the people of the territory in dispute. These claims were confirmed by Great Britain in July, 1764.

Wentworth complained of this loss of territory, and represented it to be injurious to the peace and prosperity of the country; but he was constrained, by advice of counsel, to recommend to the settlers due obedience to the authority and laws of New York.

Had this royal decree been interpreted by the Yorkers as simply effecting a change of jurisdiction, the inhabitants would have quietly submitted, as it was immaterial to them, other things being equal, whether they lived in New York or New Hampshire. Unfortunately, the private interests of Colden and the land speculators induced another interpretation. They maintained that the decision had a retrospective application; that the Connecticut River had always been the eastern boundary of New York, and hence the grants made by New Hampshire were null and void.

The people of the Grants were now apprised of the true nature of the diplomatic game that was being played, in which they were the parties likely to be the most affected. They now realized that the lands they had duly bought and paid for, and for which they held deeds under the authority of the Crown, were coveted by the land speculators, and, under color of law, the latter purposed to wrest them from their hands.

In 1765, a committee from the Grants waited upon the newly-appointed Governor of New York, Sir Henry Moore, to solicit his protection against the New York patents; but this measure failed of its purpose. The following year an agent was sent to the Court of Great Britain to recount the unjust proceedings against them; and the King in Council, in response thereto, issued an order bearing date of July 24, 1767, requiring of the Governor of New York that he should not, "upon pain of his Majesty's highest displeasure, presume to make any grant whatsoever of any part of the lands in question, until his Majesty's further pleasure should be known concerning the same." This order was obeyed during the administration of Governor Moore; but after his death, which occurred in the fall of 1769, it was wholly disregarded, and grants were made by successive governors up to the Revolutionary period.

After the death of Moore, New York proceeded to carry out its plan by attempting to compel the Vermontese to repurchase their lands, or to abandon them. Many of the settlers did not have the ready funds with which to repurchase their homes, had they been so minded; while the great majority peremptorily refused to submit. This bold opposition was followed by actions of ejectment at Albany, and judgments against the protesting settlers, the original proprietors.

The Governor of New York exercised a little judicious diplomacy by making a partial distinction between the settlers on the east and west sides of the Green Mountains, and, by winning some of the leading characters over to his interest, by that means divided the people. Some settlers on the east side, by yielding up their New Hampshire titles, had new or confirmation grants from New York on payment of half fees. The usual fee of the former colony for granting a township was about three hundred dollars; but under the latter it generally exceeded two thousand dollars.

To promote a further division between the two sections, New York gave civil and military commissions to settlers on the east side. A new county was erected there, and a log court house and jail was built in the wilderness, eight miles distant from any settlement. The Governor, by this stratagem, partially brought the eastern counties to coincide with New York, thus placing the western district in the interior of the government. He hoped in that way to compel their submission; forgetting that men, who had braved every danger and hardship attending the settlement of a wild country, would

not tamely submit to be dispossessed. The contest now grew warm and serious. Writs of ejectment were issued and served; some officers were prevented by force from serving their writs; the papers were returned to the Supreme Court at Albany.

Ethan Allen, a proprietor under the Hampshire Grants, accompanied by an eminent barrister of Connecticut named Ingersoll, repaired to Albany to answer in behalf of the Grants. When the first case was brought, Ingersoll answered for the defendant, supporting his plea by the royal orders and instructions to Governor Wentworth to make grants of land in the province of New Hampshire, and also produced the grant and charter to the settlers. The judge would not admit them to be taken as evidence, on which Ingersoll perceived the cause was already prejudged, and withdrew from the defense.

CHAPTER III.

RESISTING THE NEW YORK CLAIMANTS.

On the return of Mr. Allen to Bennington, the people met in convention, and passed a resolution to support their rights and property by force, inasmuch as justice was denied them by the intriguing land-jobbers controlling the civil power of New York. This was a bold stroke of one hundred men thus to oppose the most favored and influential colony under the Crown; but the Vermonters rightly conjectured their quarrel was with the governor of New York and a few land speculators only, and not with the body of its inhabitants.

Matters were daily becoming more serious. Civil officers were opposed by the people of the Grants; the latter were in turn indicted for riot, and sheriffs were sent to apprehend the delinquents. These officers were seized and severely chastised *with twigs of the wilderness*; that is to say, they were bound to trees and treated to an application of beech rods on their bare backs, well laid on. Every day produced new events: the settlers resolved to form themselves into a military association for mutual protection.

Before the close of the year 1770, committees of safety had been organized for purposes of defense against the New York claimants. These committees afterwards met in general convention, when important issues were to be determined. Ethan Allen was commissioned Colonel Commandant, and Seth Warner, Remember Baker, Robert Cockran, Gideon Warren and others, were appointed captains.

The Governor of New York had threatened to drive the Vermonters into the Green Mountains, which occasioned their taking the name of "Green Mountain Boys." The committees of safety passed a resolution in general council, in 1771, that no officer from New York be allowed to carry out of the Hampshire Grants any person, without permission given by the committees, or the military commanders. Surveyors of land under New York were forbidden to run any lines within the Grants; and transgressors in this particular were to be punished according to the judgment of a court formed among the military officers or elders of the people.

“Hugh Monroe, an old offender, was taken, tried, and ordered to be whipped on his naked back. He was tied to a tree, and flogged till he fainted; on recovering he was whipped again till he fainted; he revived and underwent a third lashing till he fainted; his wounds were then dressed, and he was banished the district of the New Hampshire Grants.” These severities proved a salutary lesson, and the Green Mountain Boys became a terror to their adversaries.

The convention next issued a decree forbidding all persons taking out grants, or confirmations of grants, under New York. This had the effect of uniting the settlers very much in the common cause. About the same time the Colonial Assembly of New York authorized the sheriffs to call out a *posse comitatus* in case of opposition to the execution of their office; and the Governor offered a reward of £150 for Colonel Ethan Allen, and £50 each for Warner and five others therein named, to any person that should take and confine them in any jail in New York. As a measure of retaliation, Allen and the other proscribed persons offered a reward of £5 for the taking of John Taber Kemp, Attorney General of New York, and published the same in the newspapers of the day.

The Supreme Court at Albany, having awarded a judgment on a writ of ejectment against James Breckenridge, of Bennington, the sheriff of Albany County summoned a posse to the number of seven hundred and fifty men to go and assist in serving the same. The officers collected about three hundred, and reaching Breckenridge’s house some hours in advance of the sheriff’s party, stationed their men in ambuscade in readiness to receive them.

An officer and eighteen men were placed inside the house. One hundred and fifty were secreted behind trees, in a wood, near the road by which the sheriff must pass, and where he would naturally halt his men while he went to demand possession of the premises. The other division was stationed behind a ridge of land, in a meadow, within gun-shot of the house, but out of sight of the sheriff’s men. This arrangement of the ambuscade enabled the Green Mountain Boys to have a cross-fire on the Yorkers without endangering themselves; and they were instructed to hold themselves in readiness to commence the attack in case the sheriff forced the door, the signal to be a red flag hoisted above the chimney top.

When the sheriff and his party approached, all was silent; and exultingly they marched directly into the trap without being aware of their critical situation. Mr. Ten Eyck, the sheriff, went to the house and demanded entrance as Sheriff of the County of Albany; and threatened in case of refusal, to force the door. The answer was, "Attempt it, and you are a dead man." He repeated his demand; and was answered by "hideous groans from within."

At this juncture, the two divisions exhibited their hats on the points of their guns, which made them appear more numerous than they really were. The sheriff and his men, realizing the danger of their situation, "and not being interested in the dispute," beat a hasty retreat, without a gun being fired on either side. This affair served not only to cement the union of the people, but also to cause a higher estimate to be placed on them by the neighboring colonies.

On another occasion, an armed party of fifty men proceeded to Arlington, where they took prisoner Captain Remember Baker, one of the seven proscribed persons, severely wounding both him and his wife. Baker was put into a sleigh, and the party set out with all speed for Albany. An express was dispatched to Bennington with tidings of the occurrence. Ten men promptly mounted fleet horses, and after a ride of thirty miles, intercepted the kidnapping party at a crossroad. The ten horsemen impetuously charged upon the fifty Yorkers; and the latter, supposing them to be the advance guard of a larger force, left their prisoner and fled. Captain Baker was nearly exhausted with loss of blood; but he was kindly cared for, his wounds dressed, and he was restored to his wife and children, to their no small joy, and that of his friends.

A report reached Bennington that Governor Tryon was on his way by water to Albany, with British Troops, with a purpose to subdue or destroy the Green Mountain Boys. This was the more readily credited, as the royal troops had lately been used on Bateman's ^[B] Patent, in the colony of New York, to quell some disputes about the titles or rents of lands; and it was known that the subsequent grantees of the New Hampshire Grants had applied to the Governor of New York for a similar favor.

The committees of safety met the military officers to consult on the measures proper to be taken. They felt themselves at a crisis that would

either compel them to submit, or take the field against a royal Governor and British troops. Having reflected on the justice of their cause, the labor and expense of building and the cultivating of their lands, they unanimously resolved “that it was their duty to oppose Governor Tryon and his troops to the utmost of their power, and convince him and his council that they were punishable by the Green Mountain Boys for disobeying his majesty’s prohibitory orders of July, 1767.” The elders of the people assured the military officers that they would afford them all the assistance in their power, and advised them to concert among themselves the plans of defense, and then withdrew.

A messenger was sent to Albany to ascertain the truth of the report, and learn the strength of the enemy and the order of marching. On his return, the messenger reported that “the British troops were wind-bound some distance below Albany, and were destined to relieve the garrisons at Oswego, Niagara, and Detroit, and that Governor Tryon was not with them.” Of course all preparations for a battle were suspended.

The Governor and land agents of New York were in due time apprised of this “note of preparation,” and were thus assured the Green Mountain Boys would fight even the King’s troops on provocation. This affair served the purposes of Vermont as well as a bloody victory could have done; and prompted the Convention to forbid “all inhabitants of the New Hampshire Grants to hold or accept any office of honor or profit under the colony of New York, and requiring all civil and military officers who had acted under New York to suspend their functions under penalty of being *viewed*.^[C]”

The first settlers of Clarendon were adherents of New York. Disturbances had often sprung up in that place, and Mr. Spencer, who had acted as Justice of the Peace under New York, had often sent writs against the people. Colonel Allen and a few hundred men set off for Clarendon, to frighten Spencer out of the country. Acting on information received of Allen’s intended visit, Spencer fled into the woods, and was not to be found when the party reached the house.

After scouting the woods in vain, they marched three miles and put up for the night. Towards daylight, Allen and his two men went again to Spencer’s house. Forcing the door with a log, they rushed in with their guns and

pistols, crying out for Spencer to appear; but he had not ventured to return home.

As they rejoined the main force, a small dog was discovered, which, unfortunately for the dog, bore the name of Tryon. This animal they cut into pieces with their swords for no other cause than that its name was Tryon; they held up the pieces of the dog on the points of their guns and cried out —“Thus will we do with Tryon!” Spencer was so much alarmed at these proceedings that he fled to New York, and matters remained quiet for a time.

In the spring of 1772, Governor Tryon, through the medium of a minister residing in Bennington, made overtures to the people of the Grants for a pacification. He promised if they would send agents to negotiate an accommodation, they would be received and protected, only excepting Ethan Allen, Seth Warner, Remember Baker, and Robert Cockran.



“Viewing” a New York sheriff with beech rods.

This proposal being accepted, Captain Stephen Fay and Dr. Jonas Fay were sent to represent Vermont before the Governor, to arrange for an adjustment of claims. The most that was effected was a cessation of hostilities until his Majesty's pleasure could be further known. During this armistice, a surveyor named Cockburn was privately sent to survey out and locate lands within the bounds of the New Hampshire Grants. Ira Allen and a number of men went in search of him. They found the offender at Bolton, one hundred and thirty miles through an almost unbroken wilderness to the north of Bennington. They broke his instruments and allowed him to depart, with an admonition never to be seen in those parts again under pain of death. Only the partial armistice, and the efforts for a restoration of peace then in progress, saved Mr. Cockburn a severe whipping.

Governor Tryon next essayed the plan of establishing a colony of emigrants under the New York proprietors. The settlers were to be Scotchmen, and the colony was to be located at New Haven Falls. Allen was duly apprised of this, who, with a number of trusty followers, repaired to the place and began the construction of a block fort. The Scotch emigrants wisely sent some agents to view the country before coming in with their families; and learning the nature of the dispute as to title, refused to have any more to do in the matter.

One evening while Colonel Ethan Allen and Levi Roberts were at the house of a friend by the name of Richardson, they were surprised by two sergeants and ten soldiers from the garrison at Crown Point, all of them well armed. Allen and Roberts were well known to the soldiers, and realized they were caught in a trap, as, stimulated by the reward on their heads, the soldiers would be certain to take them before the New York authorities. But even in this dilemma, Allen's presence of mind did not forsake him. Both he and Roberts had their side arms about them, and he judged the soldiers would not immediately risk an open encounter. Calling for liquor, he began to make merry with the men; and such was his address, and his powers of conversation, that they were actually forced to join in the revelry. It was not long before the sergeants were dismayed at beholding their men, one by one, yielding to the seductive influence of their potations. Yet the doughty Colonel kept lustily calling for more liquor; and with well-feigned huskiness of voice, pressed all to drink, swearing they would merit his eternal displeasure if they refused.

At length, after nearly all had rolled from their chairs, stupefied by the quantities of liquor they had swallowed, Allen demanded to be shown to bed. He was answered that the sergeants had engaged the only spare beds in the house. He refused their offer to give up one of the beds to himself and Roberts, with a maudlin remark that two such jolly subjects of the King should have the best the house afforded, and declared his intention to sleep in the barn.

Leaving their guns in the house to disarm suspicion, Allen and Roberts suffered themselves to be conducted to the barn by the sergeants, where they were locked up for the night. The Colonel was apparently so far overcome with liquor as to require the assistance of two men to enable him to walk; and he reeled about, and dropping down helpless upon the straw, fell off into a drunken slumber. Even Roberts began to have serious misgivings as to the condition of his Colonel, whom he had seen drain glass after glass during the evening, enough to turn the heads of half a dozen men. But no sooner had the footsteps of the retreating sergeant died away, than the labored breathing of the Colonel suddenly ceased; and sitting up, drew off his boots and poured therefrom the rum that Roberts was ready to swear he had seen disappear down Allen's throat.

Allen knew the soldiers had only repaired to the house to allow himself and his companion time to get sound asleep, when they would return and surprise them. What was to be done, must be done quickly. But Allen had no intention of leaving without their rifles. While they debated as to the best method of securing them, those coveted weapons were brought them by Miss Richardson, who had found means to privately remove them from a window; then making their egress from the barn, they hastily sought the safety of the dark forest. An hour later the sergeants went to secure their prisoners, whom they expected to find helplessly drunk, but the birds had flown.

One Hough, of Clarendon, was persuaded to accept the office of Justice of the Peace under New York, and attempted to officiate as such. He was taken before the committee of safety, where he plead in justification that he was authorized by the colony of New York. The committee caused the resolution of the Convention of the New Hampshire Grants to be read to him, forbidding all persons holding any office under New York, and then pronounced judgment on the prisoner that he "be taken and tied to a tree,

and there, on his naked back, to receive two hundred stripes; his back being dressed, he should depart out of the district; and in the event of his return, unless leave was granted, he was to suffer death.” It is needless to add the sentence of whipping was summarily executed. This occurred in January, 1775. Hough had signalized himself as being very active in procuring the outlawry acts against Allen and others of the Green Mountain Boys.

Dr. Samuel Adams, of Arlington, was outspoken in his denunciation of the Green Mountain Boys, and counseled the people to purchase lands under New York titles. The Doctor was cautioned to keep silent, and not needlessly incur their displeasure; but he declared he would free his mind, and, providing himself with a pair of good horse-pistols and other weapons, said he was ready to silence any man who dared to cross him. He was soon afterward surprised, and carried to the Green Mountain Tavern at Bennington, where the committee heard his defense. Of course judgment was rendered against him, and preparations made to carry his sentence into execution.

As was common in those days, a post some twenty or more feet in height held the tavern sign. On the top of this sign-post was a stuffed catamount’s skin, showing large teeth, looking and grinning towards New York. Dr. Adams was tied in an arm chair and hoisted up to the sign, where he hung two mortal hours, as a punishment for his treasonable utterances. A large number of the citizens assembled to see the sentence carried out, and they were loud in their jeers and merriment at the Doctor’s discomfiture. He was then let down, dismissed by the committee, and admonished to go and sin no more.

Colonel Ethan Allen was once on a visit to his brother Heman, who was residing at Salisbury, Conn. A plot was laid by some Yorkers to capture and convey him to the Poughkeepsie jail, and so obtain Tryon’s promised premium. Robert M’Cormick, who was on intimate terms with the family, had been engaged to act as decoy. He was to spend the night with the family as their guest, and at a convenient hour, open the door and conduct the gang to the apartment where the Colonel slept. A sleigh was to be in readiness outside, in which their prisoner could be driven with all speed out of Connecticut.

M'Cormick parted from his companions at some distance from Heman Allen's house. He was kindly received, and offered a bed for the night. It was noticed he was unusually reticent, and quite reserved in his participation in the hospitalities tendered him. He made some indirect inquiries after Colonel Allen, who had ridden out that afternoon, but who was momentarily expected to return.

From these circumstances Heman was led to suspect some plot was on foot against his brother, and so expressed himself on that gentleman's return. The Colonel thereupon taxed M'Cormick at his unusual concern, and so pressed the poor fellow that he confessed there was a plot to capture him, and that he had come for the purpose of privately informing him of it. M'Cormick departed soon after, and told the gang of what he had done. Preparations were made for defense by the household, but they remained through the night unmolested.



Old Catamount Tavern.

The scene of this adventure was the birthplace of Ethan and Ira Allen, from which, at an early age, they removed with their parents to the Hampshire Grants. Ethan was remarkable for the boldness with which he declared his opinions, and a self confidence that was abashed by no consciousness of ignorance. He acquired a wide notoriety as a pamphleteer during the

Vermont troubles, there being no paper published there at that time. His enemies tried to fix on him the stigma of an outlaw; and even so careful a historian as Irving is led to make the observation that he was “a kind of Robin Hood among the mountains.” The late T. S. Arthur once wrote of him as being a “guerilla chief,” forgetting that he acted under the direction of a committee of safety—an authority universally adopted by the other colonies during the Revolution.

Ira Allen was still further traduced. The *Western Star*, a paper published at Stockbridge, Mass., in 1797, styles him the “Vermont Land Jobber;” and states he was at the time under arrest for treasonable designs against the government of Great Britain, concluding with the observation—“All humane men should shudder at the idea of a halter; and many honest men will rejoice if Allen’s liberation puts an end to his restless career in future.” Allen, it seems, had been charged with supplying the Irish, then in rebellion against England, with arms: after eight years of litigation he was acquitted.

CHAPTER IV.

MANDATORY LAWS OF NEW YORK.

The spirit of opposition and resentment had risen so high because of the events recorded in the preceding chapter, that New York was led to adopt the most stringent measures of coercion. The law which the wisdom of that colony devised to meet the exigencies of the occasion was a curiosity in American Legislation. It enacted that if any person opposed the civil officers of New York, or burned or destroyed property belonging to subjects of that colony, or assembled for riotous purposes, such offenders shall be adjudged guilty of felony, without benefit of clergy, and were to suffer death as felons. The law made it the duty of the Governor to publish the names of offenders indicted for capital offenses, with an order requiring them to deliver themselves up in seventy days; in default of which the courts might award execution against them the same as though they had been tried and convicted—the death penalty to be administered without the benefit of clergy. All crimes, therefore, that had been committed on the Grants, could be tried at Albany, and a neglect to obey summons to deliver one's person into custody, was equivalent to a conviction. Thus was sought to be evaded the dangerous duty of serving processes on the Green Mountain Boys, and they would convict themselves by refusal to surrender without the inconvenience of a trial.

If this law was remarkable, the answer of the Green Mountain Boys was no less so. Said they: "By legerdemain, bribery and deception, they [the New Yorkers] have extended their dominion far and wide. We are resolved to inflict immediate death on whomsoever shall attempt the apprehension of the persons indicted as rioters. We will kill and destroy any person that shall be presumed to be accessory, aiding or assisting in taking any of us; although they have a license by the law to kill us, and an indemnification for so doing, they have no such indemnification from the Green Mountain Boys. If New York insists on killing us to take possession of our vineyards, let them come on; we are ready for a game of scalping with them." These sentiments were announced by handbills and in the papers throughout New

England, with the design of deterring New York from attempting to enforce the law, as such an attempt would be certain to result in an effusion of blood. The people of Vermont maintained in this that they were merely contending for justice, and that the officers of New York, who were calling upon the inhabitants of Vermont to obey the royal orders, were themselves acting in open violation of the express commands of their King.

A new interest may be awakened when the character of the claimants is considered. The Green Mountain Boys were the actual settlers. Each family had its log house in the midst of the clearing, with luxuriant crops of corn and potatoes growing among the charred stumps. These pioneers had brought nothing into the woods with them except what could be carried on horseback; some even brought in their goods on hand-sleds in winter, the infirm and children being drawn by husbands and brothers. A few cattle, sheep and hogs, shared rude sheds along with the horses. The rewards of industry and thrift were beginning to be realized. Many families lived remote from each other, and weeks might often pass by without meeting a neighbor. There was plenty of room for the Yorkers if they wished to turn farmers, and were willing to carve a home out of the wilderness as others had done. But such was far from their purpose. Besides, a farm ready cleared, with a snug house and barn, is preferable to one in the unbroken wilderness, when either can be had for the taking—and so thought the New York land-jobbers.

CHAPTER V.

AFFAIR AT WESTMINSTER.

Colonel Allen collected the documents relative to the several grants of the Crown, including that to the Plymouth Colony, to Lord Say and Seal, to the Duke of York, and some other papers, and in 1774 published them in a book. This had the effect of bringing the Vermont troubles into notoriety. The newspapers everywhere were circulating the proceedings, which resulted in stirring up public sentiment against the Crown, as it was supposed the Governor and Council of New York were sustained in their claims by the home government.

Hitherto the opposition to New York had been confined principally to the inhabitants west of the Green Mountains. As already stated, the policy of New York had been to divide the people in their sentiment, by a conciliatory course in respect to those living on the Connecticut River. But now an incident occurred which had the effect of arousing the spirit of opposition throughout the whole extent of the Hampshire Grants.

In September, 1775, a meeting of delegates from the several colonies met at Philadelphia, to consult upon measures for the public safety. This was followed by an almost universal suspension of the royal authority, the courts being closed, or adjourned without doing any business. New York alone refused assent to the patriotic measures recommended by Continental Congress. The court of justice for the County of Cumberland, on the Hampshire Grants, was to be held in March of that year at Westminster. Much dissatisfaction prevailed throughout the county, because of the course adopted by New York, and attempts were made to dissuade the judges from holding the court, without avail.

Early in the morning of the day appointed, the people of Westminster and the adjacent towns took possession of the court house to prevent the officers of the court from entering. The opposing party appeared, armed with guns, pistols and swords, and commanded the people to disperse. This being refused, the judges and their friends retired. About eleven o'clock at night they again appeared and demanded admittance; being again refused, they

opened fire, killing one man and wounding several more. The wounded men, and some others, were seized and dragged to prison.

The next day the people flocked in from every part of the country. A coronor's inquest was instituted on the body of their fallen comrade, and a verdict returned of "willful murder by the Court Party," some of whom were immediately seized and placed in jail.

The news of this event spread far and wide throughout the Hampshire Giants, and fired the hearts of the stern yeomanry with an irrepressible bitterness and rage against the authorities of New York. A meeting of the committees of safety was held at Westminster the following month, at which spirited and patriotic resolutions were passed, among which was a declaration "that it is the manifest duty of the inhabitants, on the eternal and immutable principles of self-preservation, wholly to renounce and resist the administration of the province of New York, until such times as the lives and property of the inhabitants can be secured thereby." Indeed, such was the state of feeling, that but for the ominous occurrences preceding the American Revolution, which for the time absorbed all minor considerations, New York and Vermont would have been brought to the direful issues of a civil war.

CHAPTER VI.

ATTITUDE OF CONGRESS.

It must not be supposed, however, that in the overshadowing event of the great drama of the Revolution, the disputed claims to jurisdiction over Vermont were entirely forgotten. On the contrary, New York improved the very first opportunity to make application to Congress for a recognition of her title to the territory. Then New Hampshire, inasmuch as she had made the original grants of the soil, memorialized Congress for a recognition of her claims. Next Massachusetts, fearing lest the others should proceed to carve up the disputed territory as they could mutually agree, interposed her plea for a portion, as coming rightfully under her jurisdiction. So, while Vermont was battling bravely with the common enemy devastating her borders, she had to contend with the plots and baneful policy of three beleaguering and powerful States; and she only asked of Congress an independent sovereignty and even-handed justice.

Thus were four factions asserting a right to a jurisdiction over the territory, and each demanding of Congress a recognition of its claims. That body chose the wisest course practicable. It advised each party to refrain from a forcible exercise of authority over the disputed territory as a preliminary measure to future adjustment. To this New York, Massachusetts and New Hampshire readily agreed, and authorized Congress to settle the whole matter in controversy.

But the Green Mountain State was of different mettle. She had already declared herself free and independent; she had boldly assumed the powers of government, and had exercised those powers in every part of her territory. She was not willing to surrender her sovereignty at the behests of a Congress by which her rights were not respected, and in which she was not represented. She was ready, as she had ever been, to bear her share of the war with Great Britain, and her sturdy Green Mountain Boys had more than once proved their valor and patriotism on the bloody field; but she would not consent to resign her just rights to the arbitrament of any body of men under heaven.

In June, 1780, Congress declared “that the proceedings of the inhabitants on the New Hampshire Grants were highly unwarrantable, and subversive of the peace and welfare of the United States; and that they be strictly required to abstain in the future from all acts of authority, civil or military, over those inhabitants who profess allegiance to other States.”

Undaunted by this reprimand, Vermont responded, through her Governor and Council, that she considered the same subversive of her inalienable rights; that it was not in accord with the principal on which Congress grounded its own independence; and that it was contrary to the provision of the Federal Constitution forbidding Congress to meddle with the internal policy of unrepresented territory. Vermont farther intimated that if the present course was persisted in, she would have no motive to continue hostilities with Great Britain, and maintain an important frontier for a country that treated her people as slaves; but that it would remain for her to finally appeal to God and to an impartial world, to say who would be accountable for the awful consequences that must ensue.

And now having outlined thus much in advance by way of a better understanding of our subject, we will proceed to treat more in detail.

CHAPTER VII.

FALL OF TICONDEROGA.

On the night of the 17th of April, 1755, a lantern was hung out from an upper window of the North Church of Boston. Never did the beams of a tallow dip go forth on more momentous errand. As the feeble rays shot out into the night, few realized therein a symbol of the cause of Liberty that was so soon to be consecrated with patriot blood, and that was destined to create a refuge for the oppressed of every land. Hostile British troops were silently threading the dark marshes, and this was the signal to the minute men to prepare for their coming.

The British had placed guards on all the roads leading out of Boston to prevent all intelligence of the midnight sally from getting abroad; but the enemy had proceeded only a few miles when alarm guns, booming through the night air, and the clanging of village bells, showed that the news of their approach was traveling before them, and that the country was rising. An express was sent back to Boston for a reinforcement, and Major Pitcairn was detached to press forward with all speed.

About seventy of the yeomanry of the country had been drawn up in military array near the church on the village green at Lexington. Pitcairn halted his men within a short distance of the church, and ordered them to prime and load. They then advanced at double quick. The Major, riding forward, shouted, "Disperse, ye rebels! lay down your arms and disperse!" The patriots refused to obey; nor were they put to flight until eight of their little band were killed and ten wounded. The victors formed on the common, fired a volley, and gave three cheers for their inglorious triumph. Colonel Smith now arrived with the remainder of the force, and the march was resumed to the little village of Concord.

There the alarm had preceded them, arousing the inhabitants in the dead hour of night. The church bell called together the inhabitants. The minute men seized their arms and paraded near the church. Efforts were being made to conceal the military stores. A horseman brought word that the

British troops had fired upon the people at Lexington, and were then advancing in victorious array upon Concord.

The excitement and indignation of the brave patriots were fully roused. Some of the militia marched down the road to meet the English force, and reported it to be three times their own. They now retired to an eminence about a mile from the centre of the town.

About seven o'clock the British troops hove in sight, with flags displayed and arms glittering in the morning sun. A strong detachment took post on the green, while parties were sent out to destroy the military stores. The yeomanry from the surrounding country were pouring in with such arms as they could obtain, until the little war-gathering on the height numbered nearly five hundred. At ten o'clock a body of three hundred dislodged the British from the north bridge, with a loss of two men killed. By this time, the stores having been destroyed, the enemy prepared to retreat.

The British troops were jaded with their long night march, but there was no rest or safety for them short of Boston. On their return march, the adjacent rocks and stone fences formed convenient breastworks, from behind which rustic marksmen sent the deadly bullet full into their ranks. Some were shot down: others dropped from sheer exhaustion; the rest hurried on with no care for their fallen comrades.

Before reaching Lexington, Colonel Smith received a severe wound in the leg. About two o'clock in the afternoon, they were met by a detachment one thousand strong, with two field pieces. This was the reinforcement that had marched so gaily through Roxbury to the tune of "Yankee Doodle," in derision of the rebels. The troops opened to the right and left, allowing the retreating soldiers to throw themselves into the hollow square to rest. A little after sunset the pursuit terminated at Charlestown common. A half hour afterward, a powerful body of men from Marblehead and Salem came up to join in the chase. Thus the ministerial troops narrowly escaped being cut off. The British loss was seventy-three killed, and one hundred and seventy-four wounded; that of the patriots forty-nine killed and thirty-nine wounded.

The cry for vengeance at this desecration of American soil resounded through the land.—Measures were concerted in council; the outrage was discussed in cabin and palace, and around the camp-fire of the hunter; while

the voice of supplication from altar and dwelling was heard, asking the Almighty to bless the patriot cause.

As by common impulse, public attention was turned to the British fortresses of Ticonderoga and Crown Point, against which retaliatory measures could be employed with the best effect. As these forts were located near the homes of the Green Mountain Boys, and their hardy courage fitted them for a duty of this kind, requests were sent simultaneously from several of the provinces to Ethan Allen^[D] and his followers to surprise and capture those places. The provincial Legislature of Connecticut, though not openly sanctioning the invasion, lent money from its treasury to those engaged in it, and appointed a committee to assist in raising troops and supervising their management. The force finally engaging in the expedition was about two hundred and seventy strong, composed of Green Mountain Rangers, with the exception of sixteen men from Connecticut and a score or so from Massachusetts.

Towards the close of April, 1775, it was evident something of unusual interest was transpiring in the Hampshire Grants. The labors of the farm were neglected at a time when they would require most attention, and with one accord each sturdy husbandman shouldered his trusty rifle, and silently betook himself to a journey.

The course of each led through the wilderness toward a central point near Bennington; and, before long, a motley array of mountaineers, in rough garb but of tried strength and valor, were gathered as though for some military exploit. Colonel Ethan Allen was placed at the head of the expedition,—James Eaton and Seth Warner being second and third in command: the troops arrived at Shoreham, opposite Fort Ticonderoga, on the night of the 7th of May. Detachments were sent off to Skenesborough (now Whitehall), and other points, to secure all the boats they could find for the transportation of the troops to the opposite shore.

About this time Benedict Arnold appeared among them, thirsting for military glory. He bore a colonel's commission from the Massachusetts committee of safety, and attempted to assume command of the expedition. The Green Mountain Boys, however, would follow no leader but Allen, and Arnold was obliged to yield, engaging to act as volunteer, with the rank but not the command of colonel.

The night of the 9th of May had arrived, but not so the boats for which detachments had been sent in quest. Yet it was deemed best not to delay the enterprise, and transportation was commenced with the few boats at command. The work proceeded slowly; day was about to break when Allen and Arnold, with only eighty-three men, had crossed. To wait another day would lead to discovery by the garrison. Allen drew up his men and announced to them his purpose. "It is a desperate attempt," said he, "and I ask no man to go against his will. You who are willing to follow, poise your firelocks." Not a soldier shrank from his duty.

Guided by a boy, they mounted the hill silently and at a rapid pace. Day was breaking as Allen, with Arnold at his left hand, arrived at a sally port. A sentry snapped his piece at him and retreated, closely followed by Allen and his men. Another sentinel thrust at Eaton with his bayonet, but was struck down, when he begged lustily for quarter. His life was spared on condition of his leading the way instantly to the quarters of the Commandant who was yet in bed. Allen thundered at the door, and demanded a surrender of the fort. The Commandant appeared at the door half dressed, "the frightened face of his pretty wife appearing over his shoulder." By this time the Green Mountain Boys had formed on the parade ground, and were giving vent to hearty cheers. The garrison were made prisoners as they rushed forth in their confusion, having been startled out of their sleep. The Commandant was bewildered at what he beheld, and addressing Allen, cried out, "By what authority do you act?" "In the name of the great Jehovah and the Continental Congress!" was the reply.

Captain Delaplace with forty-eight of his men, a great supply of much needed military and naval stores, and a valuable fortress, were among the trophies of this brilliant dash of inexperienced farmer soldiers.

Colonel Seth Warner, who had now come over from Shoreham with the residue of the troops, was sent with a detachment against Crown Point, an express having been previously dispatched to Captain Baker, of Onion River, forty miles distant, to come with his company to assist. Captains Warner and Baker appeared before Crown Point nearly at the same time; the garrison, consisting only of a sergeant and twelve men, surrendered without firing a gun. Here were taken upward of a hundred cannon. On his way down, Captain Baker intercepted two small boats which had been sent to give the alarm to St. Johns, on the Sorel River.

Arnold now insisted on being given the command of the fortress, as being the only officer clothed with legal authority. Allen was too popular to be eclipsed by the assumptions of Arnold; and the Connecticut committee, which had accompanied the enterprise, gave an instrument in writing investing Allen with full command of the fort and its dependencies, until he should be in receipt of orders from the Connecticut Assembly or Continental Congress. Arnold was forced to content himself, meanwhile, with a statement of his grievances to the Massachusetts Legislature.

Just at this time a new project was set on foot which had the effect to appease the restless spirit of Arnold. The detachment originally sent to Skenesborough arrived with a schooner and several bateaux. Allen and Arnold arranged to continue their conquests by an attempt to surprise St. Johns, the frontier post of Canada. Arnold, who had been a seaman in his youth, took command of the schooner, which had been furnished with cannon and ammunition from the fort, while Arnold and his Green Mountain Boys embarked in the bateaux.

Arnold outsailed the other craft, surprised the post of St. Johns, and made its garrison prisoners; captured the King's sloop of seventy tons, with two brass pieces and seven men; took four bateaux and destroyed several others; and then, learning that troops were on the way from Montreal and Chamblee, spread his sails to the breeze and swept up the lake with his prizes and his prisoners, and some valuable stores.

On the way he met Allen and the bateaux. Salutes were exchanged, cannon answering to musketry. Learning from Arnold the particulars of his victory, Allen determined to push on and occupy the vacated post. The Canadian reinforcement had already taken possession on his arrival, so he returned to Ticonderoga.

This series of brilliant exploits was hailed as if in requital for the recent acts of British atrocity, and as an omen of a brighter future for the colonies. To the adherents of the Crown it must have been the occasion of astonishment and alarm. It drew public attention to the prowess of the Green Mountain Boys; and their leaders, from being denominated outlaws, were now extolled as patriots.

The capture of those frontier posts impressed the American people with a sense of their ability to cope with the disciplined soldiers of England, and

helped some to decide for independence who had trembled in the balance, and at the same time contributed to render preparations for defense more prompt and effectual.

CHAPTER VIII.

EXPEDITION INTO CANADA.

Although these dashing exploits met with the unqualified approval of public sentiment throughout the country, yet Congress for a time wavered as to the disposition of the captured fortresses. An endorsement of those victories by that body would destroy all chances of an ultimate reconciliation with England, of which some entertained strong hopes; others thought the day for a peaceable settlement had passed, and insisted that those victories should be followed by energetic action. The Green Mountain Boys kept possession of the forts until Congress had, so to speak, legitimated their capture, and by its order, Colonel Hinman's regiment of Connecticut troops was dispatched to relieve them.

Another question had arisen as to which should have the credit of capturing the posts, Allen or Arnold. Both had sent dispatches to the provincial authorities, with an account of the capture, each claiming the honor of victory. "Colonel Allen," wrote Arnold to the Massachusetts committee of safety, "is a proper man to head his own wild people, but is entirely unacquainted with military service; and as I am the only person who has been legally authorized to take command of this place, I am determined to insist on my rights, ... and shall keep the fort at every hazard, until I have further orders." The Massachusetts authorities referred the matter to Congress.

Allen had written to the Albany committee for men and provisions to enable him to maintain his conquest. That committee feared retaliatory measures from Great Britain, and asked advice of the New York committee; but that body was also unequal to the task of acting in a matter of such moment, and referred likewise to Congress.

Both Allen and Arnold were ambitious for further laurels, and each were anxious to lead an expedition into Canada. Allen wrote to the New York authorities in this strain: "If the Colonies would suddenly push an army of two or three thousand strong into Canada, they might make an easy conquest, except a reinforcement from England should prevent it. Such a

diversion would weaken Gage, and insure us Canada. I wish to God America would, at this critical juncture, exert herself agreeably to the indignity offered her by a tyrannical ministry. She might rise on eagles' wings, and mount up to glory, freedom and immortal honor, if she did but know and exert her strength. Fame is now hovering over her head. A vast continent must now sink to slavery, poverty, horror and bondage, or rise to unconquerable freedom, immense wealth, inexpressible felicity, and immortal fame. I will lay my life on it, that with fifteen hundred men and a proper train of artillery I will take Montreal. Provided I could be thus furnished, and if an army could command the field, it would be no insuperable difficulty to take Quebec." A letter in similar strain was written by Arnold to the Governor of Connecticut.

About this time Captain Remember Baker was killed by an Indian in the British service. This being the first blood shed in the northern department, his death made more noise in the country than would the loss of a hundred men toward the close of the war.

On the arrival, at Ticonderoga, of Colonel Hinman's Connecticut troops, the greater part of the Green Mountain Boys returned to their homes. Ethan Allen and Seth Warner repaired to Congress to get pay for their men, and to solicit authority to raise a new regiment. They were received with distinguished marks of honor by that body. The same pay was awarded them that was given to the Continental troops; and it was recommended to the New York Convention that a corps of Green Mountain Boys should be raised to serve under officers of their own choosing.

To the Convention of New York Allen and Warner accordingly repaired—the province on whose statute books was recorded an unrepealed act of outlawry against them—and boldly asked for an audience. There was at first some demurring as to their admission to the Hall of Assembly; but patriotism, and an overruling necessity, plead in their behalf. A regiment of Green Mountain Boys, five hundred strong, was decreed, and the people of the Grants were notified of the resolve, and requested to raise the regiment.

Congress was not at first inclined to favor an invasion into Canada, but subsequent developments induced a change in its plans. The recent exploits on the Lake had produced a favorable effect on the Canadians, and it was thought they would flock to the patriot standard were it unfurled among

them with an imposing force. Besides, another effectual blow in this quarter might paralyze all hostility, if given before there had been time to rally.

That body thought General Schuyler a fit leader for the undertaking, in which sentiment it was heartily seconded by Washington. Schuyler at once set about his duties amid difficulties that well-nigh distracted him. He had calculated on being joined at a certain date by the regiment of Green Mountain Boys which Allen and Warner had undertaken to raise in the Grants. But a quarrel had ensued between those brothers in arms, which filled the Green Mountains with discord and party feuds. The election of officers took place on the 27th of July, by committees from the different townships. Ethan Allen had been passed by, and Seth Warner nominated a Lieutenant-Colonel of the regiment. This was a crushing blow to the ambition of Allen. He said in his letters from camp: "I find myself in the favor of the officers of the army, and the younger Green Mountain Boys; but the old farmers on the Hampshire Grants, who do not incline to go to war, and whom I have saved from the encroachments of New York, have met in a committee meeting, and in their nominations have wholly omitted me." Allen repaired to Ticonderoga, where he was retained to act as pioneer on the Canadian frontier.

The expedition against Canada had been determined on. Arnold, more fortunate than his rival, had attained the object of his ambition, which was no less than the command of a force against Canada: he was to proceed by way of the Kennebec River.

At the beginning of September, Gen. Schuyler, who commanded the main expedition, was stationed with his little army at Isle Aux Noix, at the outlet of Lake Champlain. From this point he sent out Colonel Ethan Allen and Major Brown to reconnoitre the country, distribute friendly addresses among the people, and ascertain their feelings. Then proceeding along the Sorel River, he approached the fort at St. Johns, when a cannonade opened, and a slight action ensued. Night coming on, they cast up a small intrenchment and encamped. Owing to unfavorable intelligence they withdrew to Isle Aux Noix to await the arrival of artillery and reinforcements.

Meanwhile, Allen returned from his reconnoitering expedition, of which he gave a most encouraging report. The Canadian captains of the militia were

ready, he said, to join the Americans whenever they should appear with sufficient force. He had held talks, too, with the Indians, and found them well disposed. He was convinced that an inroad into the province would meet with a hearty cooperation.

Preparations were made for a second investment of St. Johns, and Ethan Allen was sent to beat up for recruits among the people he had lately visited, while Major Brown was dispatched with one hundred and thirty men to make friends in the vicinity of Chamblee, and form a junction with the army as soon as it should arrive at St. Johns.

General Schuyler had been for some time the victim of a complication of maladies. When everything was in readiness for his departure, he was attacked by a severe access of his disorder, which compelled him to turn over the conduct of the expedition to General Richard Montgomery. He then set out in a covered barge for Ticonderoga. An hour after his departure he met Colonel Warner with one hundred and fifty Green Mountain Boys, the first that had reported of the new regiment. Some had deserted, and the remainder were at Crown Point, whence they were about to embark. About three hundred of the regiment finally joined the expedition.

The investment of St. Johns was begun, yet it proceeded but slowly. A letter had been received, meantime, from Colonel Allen, giving high hopes of further reinforcement. "I am now," wrote he, "at the parish of St. Ours, four leagues from Sorel to the South. I have two hundred and fifty Canadians under arms. As I march they gather fast. You may rely on it that I shall join you in about three days with five hundred or more Canadian Volunteers. I could raise one or two thousand in a single week's time; but I will first visit the army with a less number, and if necessary, go again recruiting. Those who used to be enemies to our cause come, cap in hand, to me; and I swear by the Lord I can raise three times the number of our army in Canada, provided you continue the siege. The eyes of all America, nay of Europe, are or will be on the economy of this army, and the consequences attending it."

Colonel Ethan Allen was on his way to St. Johns when he met Major Brown with his detachment. A conversation ensued, during which Brown remarked that the garrison at Montreal did not exceed thirty men, and might easily be surprised. Allen's nature was instantly aroused. Here was an opportunity for

another bold stroke like that at Ticonderoga. A plan was forthwith agreed upon. Allen was to return to a point nearly opposite Montreal, and cross the river, by means of canoes, a little below the town in the night; while Brown agreed to cross with two hundred men a little above; and the two detachments were to attack Montreal simultaneously at opposite points.

The two parties, who were several miles from each other, mutually agreed that in the event of either being hindered from coming at the time appointed, early notice should be given to the other. The night proved windy, and Brown, judging it dangerous to attempt crossing the river in canoes, went quietly to rest. Allen, apprehending no danger from the wind, on the night of the 24th of September sent the few canoes in his possession repeatedly across the river, first taking the precaution of stationing guards in the roads to prevent any alarm reaching Montreal. As he had heard nothing to the contrary from Brown, he supposed that officer to be carrying out his part of the enterprise.

The day advanced, but no signal came from Major Brown. It was evident he had not crossed. Allen would gladly have retraced the steps he had taken, but it was too late. Information had been conveyed to the town, and a force of forty regular troops were sent out to attack him. A smart action ensued; most of Allen's Canadian recruits gave way and fled; a number of Americans were slain; at last he surrendered to Major Campbell, honorable terms being promised, together with thirty-eight of his men who remained faithful to him.

The prisoners were marched into town and delivered up to Colonel Prescott, the Commandant. Their rough appearance and rude equipments became the subject of much adverse comment. "Their leader," says Irving, "albeit a Colonel, must have seemed worthy of the band; for Allen was arrayed in rough frontier style; a deer-skin jacket, a vest and breeches of coarse serge, worsted stockings, stout shoes, and a red woolen cap." We give Allen's own account of the reception he met with:

"He [the Commandant] asked me my name, which I told him. He then asked me whether I was that Colonel Allen that took Ticonderoga. I told him I was the very man. Then he shook his cane over my head, calling me many hard names, among which he frequently used the word rebel, and put himself in a great rage."

Notwithstanding Major Campbell's promise of honorable treatment of his prisoners, Allen was put on board the Gaspé schooner of war, and heavily ironed—Prescott giving him the parting assurance that he would yet grace a halter at Tyburn. From his place of confinement he wrote the subjoined letter to the General:

“HONORABLE SIR:—In the wheel of transitory events I find myself a prisoner, and in irons. Probably your honor has certain reasons to me inconceivable, though I challenge an instance of this sort of economy of the Americans during the late war to any officers of the Crown. On my part, I have to assure your honor, that when I had the command and took Captain Delaplace and Lieutenant Fulton, with the garrison of Ticonderoga, I treated them with every mark of friendship and generosity, the evidence of which is notorious, even in Canada. I have only to add, that I expect an honorable and humane treatment, as an officer of my rank and merit should bear, and subscribe myself, your honor's most obedient servant,

ETHAN ALLEN.”

The following is appended by the British annotator: “N. B.—The author of the above letter is an outlaw, and a reward is offered by the New York Assembly for apprehending him.”

After the prisoners had been conducted into Montreal, General Prescott gave orders to a sergeant and file of men, to put to death some Canadians who had been taken in arms with Colonel Allen. They forthwith went, with bayonets fixed, to execute their commission. Allen, understanding their purpose, stepped between them and the Canadians, and told the guard to thrust him with their bayonets if they must shed human blood, but to spare the Canadians who deserved no censure, as what they had done was in obedience to his orders. The guards hesitated, and Prescott being consulted, that officer revoked the order. ^[E]

During Allen's imprisonment he was confined on board a man-of-war, commanded by Captain Littlejohn, who exercised much clemency towards his prisoner, and removed his irons except when military officers came on board. A dispute arose between the Captain and an officer, resulting in arrangements for a duel. The Captain requested Allen to serve as his friend. The latter replied “if it was consistent with his situation he would do himself the honor.” The Captain answered that “he could change his dress,

and go on shore in disguise, and no questions would be asked.” The parties went ashore, but by the interposition of friends the dispute was settled.

At a later period, Colonel Allen was put on board a ship under command of Captain Smith. He was heavily ironed, and confined in the most dreary part of the vessel. When fairly out to sea, Captain Smith ordered Allen’s irons taken off, and requested him to eat at his own table while he remained on shipboard. The Colonel came from his dark abode and thanked the Captain for his generous conduct, remarking “he did not know it would ever be in his power to return the compliment.” That officer replied—“gentlemen did not know when they might render essential services to one another.”

On board was a great number of prisoners, who laid a plan to kill Captain Smith, and run off with the ship. When the project was ripe for execution, Allen was led into the secret. He firmly told them if they murdered Captain Smith they must also murder him, at which they were greatly alarmed. He quieted their fears by saying, “drop your plans, and I will be as faithful to you as I have been to Captain Smith.” Here the matter ended, and the Captain never knew of his danger, nor of the service of his grateful friend.

Information had been received by Gen. Washington of the indignities heaped upon Colonel Allen, captured by Prescott when Commandant at Montreal, and who was now, himself, a prisoner in the hands of the Americans. Washington wrote to General Howe to the following import:

“Sir:—We have just been informed of a circumstance, which, were it not so well authenticated, I should scarcely think credible. It is that Colonel Allen, who, with his small party, was defeated and made prisoner near Montreal, has been treated without regard to decency, humanity, or the rules of war; that he has been thrown into irons, and suffers all the hardships inflicted upon common felons.

“I think it is my duty, sir, to demand, and do expect from you, an eclaireissement on this subject. At the same time, I flatter myself, from the character which Mr. Howe bears as a man of honor, gentleman and soldier, that my demand will meet with his approbation. I must take the liberty, also, of informing you that I shall consider your silence as a confirmation of the report, and further assuring you, that whatever treatment Colonel Allen receives, whatever fate he undergoes, such exactly shall be the fate of

Brigadier Prescott, now in our hands. The law of retaliation is not only justifiable in the eyes of God and man but absolutely a duty.”

Washington observed in a letter to Congress: “My reason for pointing out Prescott as the object who is to suffer for Allen’s fate, is that I am given to understand that Prescott is the cause of Allen’s sufferings. I thought best to be decisive on the occasion, as did the generals whom I consulted thereon.”

Shortly afterwards, Washington received a letter from Levi Allen, a brother to the Colonel, and of like enterprising and enthusiastic character. It was dated from Salisbury, Connecticut, and enclosed affidavits of the harsh treatment his brother had experienced, and of his being confined on board of the *Gaspé*, “with a bar of iron fixed to one of his legs, and iron to his hands.” Levi proposed to go to England, where he supposed his brother was, raise a mob and set him free, bribe the jailor, or in some way deliver him from confinement. Washington kindly advised against Levi’s wild project. The measure of retaliation was actually meted out to Prescott, of which Washington spoke in his letter to Howe.

The efforts of Washington and Congress to effect the exchange of Ethan Allen, “the brave, but eccentric captor of Ticonderoga,” were meritorious. The daring exploits of that chieftain had cost him a world of trouble. “Thrown into prison as a felon; threatened with a halter; carried to England to be tried for treason; confined in Pendennis Castle; retransported to Halifax; and now a prisoner in New York.” He writes: “I have suffered everything short of death. I am fired with adequate indignation to revenge both my own and my country’s wrongs. I am experimentally certain I have fortitude sufficient to face the invaders of America in the place of danger, spread with all the horrors of war. Provided you can hit upon some measure to procure my liberty, I will appropriate my remaining days, and freely hazard my life in the service of the colony, and maintaining the American Empire. I thought to have enrolled my name in the list of American heroes, but was nipped in the bud.”

Allen was finally exchanged for Colonel Campbell, after three years of captivity. Washington, in a letter recommending that something be done for him, observes: “His gratitude and firmness seemed to have placed him out of the reach of misfortune. There is an original something about him that commands admiration, and his long captivity and sufferings have only

served to increase, if possible, his enthusiastic zeal. He appears very desirous of rendering his services to the States, and of being employed; and at the same time he does not discover any ambition for high rank.” On the strength of this recommendation, Congress voted Allen a brevet commission of Colonel.

Montgomery, during his campaign in Canada, retained Colonel Warner and his regiment of Green Mountain Boys, who contributed their services to the downfall of the strongholds of Chamblee, St. Johns, and Montreal; having served out the time for which they had enlisted, they were dismissed and returned home.

In 1776, soon after the death of Montgomery at the storming of Quebec, the Hampshire Grants raised a second regiment under Colonel Warner, which marched to Quebec, and gave essential relief to the besieging army of that place. At the beginning of May the siege was raised in consequence of the bad state of health of the troops, and the arrival of reinforcements from England. General Sullivan conducted the retreat in a masterly manner; the army arrived at Crown Point in due time, in a deplorable state.

CHAPTER IX.

ESTABLISHMENT OF A CIVIL GOVERNMENT.

This disastrous retreat exposed the frontiers of the Grants to an invasive war; most of the inhabitants of Onion River and along the shore of Lake Champlain instantly removed, and the militia was organized for the general defense. Internal dissensions were rife regarding the establishment of a civil government. Some were for joining with New Hampshire; others were in favor of forming a new state; and a few proposed uniting with New York during the war; but this last too much effected the title to lands to be seriously considered.

Vermont was likely to be devastated as a common battle-ground; yet the people met in Convention at Dorset, January, 1776, and drew up a petition to Congress, in which they declared their readiness to furnish their quota of men in support of the war, and bearing an equal proportion of the expense, and asked that their rights might be secured them. Congress recommended that they submit to the authority of New York for the present, and assist their countrymen in the contest with Great Britain.

Colonel Allen being in captivity, Baker dead, Warner, Cockran, and others, engaged in the army, the Council of the New Hampshire Grants was greatly weakened, and months passed without any decisive results. The government of the province was conducted by committees and conventions as before the war, though the bitterness of the dispute with New York seemed to be lost in the common cause of the struggling colonies; for those who had been outlawed for high treason against the government of New York, now passed freely through that province.

The following were some of the reasons for forming a new State:

A new government would perpetuate the name of the Green Mountain Boys, and the honor of their leaders.

A new government would establish the title to their lands under the New Hampshire Grants, and provide that unappropriated lands might be disposed of to defray the expenses of the war.

The active part taken by her citizens in the taking of Ticonderoga and Crown Point, would entitle the State to a favorable consideration by Congress.

That upon the revolutionary principles adopted by Congress, Vermont was the oldest State in America.

A call was issued for a convention, which, after several adjournments, on the 15th of January, 1777, declared the district of New Hampshire Grants to be a free and independent State. A declaration and a petition to Congress were drawn up, and a committee appointed to present the same.

New York, alarmed at the possible consequences of the measure, wrote to Congress, through the President of the Committee of Safety, as follows:

“I am directed to inform Congress that by the arts and influence of certain designing men, a part of this state has been prevailed on to revolt. Information we have received would lead us to believe some persons in our sister States have fostered and fomented these divisions. But as those informations tend to accuse some of your honorable body being concerned in this scheme, decency obliges us to suspend our belief. The Convention are sorry to observe that by conferring a commission upon Colonel Warner, with authority to name the officers of a regiment to be raised independently of the Legislature of this State, and within that part of it which hath lately declared itself independent, Congress hath given too much weight to the insinuations of those who pretend that your honorable body are determined to support those insurgents; especially as this Colonel Warner hath been constantly and invariably opposed to the legislature of this State, and hath been on that very account proclaimed an outlaw by the late government thereof. It is absolutely necessary to recall the commissions given to Colonel Warner, and the officers under him, *as nothing else will do justice to us.*” Congress voted to dismiss the petition of Vermont.

Notwithstanding this rebuff, the people resolved to draft a constitution for the new State. A committee was also appointed to visit the officer in

command at Ticonderoga, and consult with him respecting the defense of the frontiers.

While the committee was at that post, Burgoyne appeared in force on Lake Champlain, and resting at Crown Point sent a detachment of three hundred, mostly Indians, to land at the mouth of Otter Creek, and ravage the frontier settlements. The commanding officer at Ticonderoga refused to send off any of his troops in aid of the panic-stricken families, but allowed Col. Warner to go with the committee to raise a volunteer force from the Green Mountain Boys. A hasty levy was raised, with which the raiders were promptly repelled.

All who were members of the Convention left the militia and repaired to Windsor, July 4th. A draft of the constitution was laid before the convention and read. The matter under consideration was new, of great moment, and required serious deliberation; it was debated step by step, and paragraph by paragraph. While absorbed in their duty, an express arrived with tidings that Ticonderoga had been evacuated, and that the whole frontier of the Hampshire Grants was exposed to the ravages of the enemy.

At this awful crisis the Convention was for adjourning, as many of the members had families residing in the portions likely to be overrun by the enemy and their Indian allies. Indications of a terrible thunder storm among the mountains having put all thoughts of immediately going home out of the question, some of the more thoughtful called attention to their unfinished work. In the midst of the peals of thunder, the incessant flashes of lightning and the tumult of the elements without, the constitution was read, paragraph by paragraph, for the last time; and as the sun broke forth upon a smiling landscape, invigorated with the summer shower, Vermont was in possession of a constitution, and stood pledged to its support. A Council of Safety was instituted to act during the recess, the Convention adjourned, and the members betook themselves to their homes.

Three days afterward, this “outlaw” Warner and his proscribed Green Mountain regiment were engaged in deadly conflict, on the soil of Vermont, with the British and Indian foes of America, on the memorable battle field of Hubbardton, in which Warner’s force was decimated to about ninety men.

CHAPTER X.

BATTLE OF BENNINGTON.

The British were of opinion that the people of the Grants were opposed to the Revolution, and would join the standard of England the moment a force was marched into the territory. This belief was founded on the dissensions with New York, the unsatisfactory resolutions of Congress, and the charges of outlawry brought against the people of the Grants by their neighbors.

Bennington was a central place, whither the live stock had been collected, and whence the American army derived its supplies. It was likewise a depot of wheeled vehicles and grain deposits, and was guarded by relieving bodies of militia. Bennington was to be surprised. The country was to be scoured from Rockingham to Otter Creek. All public magazines were to be sacked. All cattle belonging to royalists, and which could be spared by their owners, were to be paid for; and all the rebel herds and flocks were to be driven away.

Colonel Skene, the noted royalist after whom Skenesborough (now Whitehall) was named, held a position in the expedition: indeed, it was owing largely to his representations that it was undertaken. Lieut.-Col. Baum was sent in charge of the detachment. He had in his command two hundred dismounted dragoons of the regiment of Riedesel, Captain Frazer's British marksmen, some Canadian Tories, and Indians, in all amounting to about five hundred men, with two pieces of cannon. It was expected the dragoons would supply themselves with horses in the course of the foray, and a skeleton corps of royalists would be filled up with recruits.

Burgoyne encamped on the east side of the Hudson, so as to be near at hand in case assistance was wanted. Baum set out from camp at break of day on the 13th of August, 1777. The state of the roads, the excessive heat, and want of horses and wagons, all contributed to render the progress slow and tedious. A few horses were brought in, and some wagons captured; but the inhabitants managed to remove most of their effects in time. The Indians killed or drove off all that came into their hands, unless they were paid in cash for their prizes.

Baum found the people of Bennington ready to give him a reception. The veteran Stark was there, with eight hundred New Hampshire militia; and Colonel Warner found himself at the head of about six hundred Green Mountain Boys, hastily collected to repel the invaders. Thus once more the cause of American Independence was to rest largely on the valor and patriotism of the outlawed Warner and his band of brave followers.

Stark had, with difficulty, been prevailed on to take the command. He had a farm among the Vermont Mountains, and his sympathies were in harmony with her people; he, too, was smarting under a sense of the injustice of Congress. He only took up arms, he said, in a moment of exigency, to defend the neighborhood which otherwise would be exposed to the ravages of the enemy.

On the 15th, Stark sent forward a detachment under Colonel Gregg, and on the following day advanced with his own men to support them. He met them about five miles off, in full retreat, with Baum and his force a mile or more in the rear.

Stark now halted, and deployed his men for action. Baum drew up his troops and formed them in a strong position on high ground at a bend of a little river, and began to intrench. Stark fell back to await reinforcements, and to entice Baum from his intrenchments. A skirmish took place in which thirty of Baum's men and two Indian Chiefs were killed.

The incessant rain of the 15th prevented a general engagement, but there was continual skirmishing. Baum employed the interim in strengthening his position; and finding the opposite force much larger than he anticipated, he had sent off in all haste to Burgoyne for reinforcements. The latter immediately detached Col. Breyman with five hundred Hessian Grenadiers and infantry, and two six pounders, leaving behind him his tents, baggage and standards. So bad were the roads, that Breyman was nearly two days getting little more than twenty miles.

Meanwhile expresses had been sent in every direction by the Americans, and recruits were pouring in from all parts of the country:—among them, Colonel Symonds with a body of Berkshire militia.

On the morning of the 16th, the sun was shining brightly, and Stark prepared to attack Baum in his intrenchments, although, for the most part,

his men had only ordinary firelocks without bayonets. He separated his force into two divisions: one was detached to the enemy's left under Colonel Nichols; a second, under Col. Herrick, was sent to the rear of his right; these two were to join and attack the British in the rear, while the third was to make a demonstration in front.

Col. Skene and other royalists, when they saw the Americans issuing from the woods on different sides, endeavored to persuade Baum that these were some of the Tories flocking to his standard. The Indians were the first to discover the error. "The woods are full of Yankees," they shouted; and retreated, yelling like demons, between the troops of Nichols and Herrick. Several of them were killed as they ran the gauntlet.

At the first sound of firearms, Stark, who had remained behind in camp, mounted his horse and gave the word *forward!* The homely speech made by him when in sight of the enemy is familiar to every school boy. "Now, my men! there are the red-coats! Before night they are ours, or Molly Stark will be a widow!"

Baum found himself assaulted on every side, but he fought with a dogged stubbornness and determination. He planted his cannon advantageously, and his fire was effective. Stark, who was in the battle of Bunker Hill, and in engagements in the French war, says it was the hottest fight he ever saw. He inspired his men with his own impetuosity. They drove the royalists upon the Hessians, and pressing after them, mounted the works with incredible fury. A Hessian eyewitness declared the rebels fought with desperation, advancing to within eight paces of the loaded cannon to take surer aim at the artillerists. The latter were slain and the cannon captured. The royalists and Canadians took to flight and escaped to the woods. The Hessians maintained their ground until the last cartridge was expended; then taking their broadswords, Baum and his men attempted to cut their way to a road in the woods. Many were killed in the attempt, and the survivors were taken prisoners. Baum was among the wounded.

The victors now dispersed; some to collect the booty, or seek refreshments, and others to care for the wounded or look after the prisoners. At this juncture Breyman's tardy reinforcement came up, making its slow and toilsome way to the scene of action, with numbers augmented by many of the enemy that had fled. Stark made superhuman efforts to rally his men,

but all were in hopeless confusion. Just as the day seemed lost to the Americans, the standard of Colonel Warner came in sight, borne by his six hundred Green Mountain Boys, fresh from repose, and eager for the fray; for were not the safety of their homes, and the fate of their wives and children, dependent on the issues of their arms?

The shock and tumult of battle broke out anew as these newly arrived reinforcements joined in deadly strife, and the ground was to be fought over once more. It was four in the afternoon when this second action commenced. Stark's men rallied, and entered again into the fight; Col. Breyman's command was driven before the patriot forces from wood to wood, and from hill to hill, until sunset. The last stand of the enemy was at Van Shaick's mill, where, having expended all their ammunition, the enemy retreated under cover of night, leaving two field pieces and all their baggage in the hands of the Americans.

Burgoyne was awakened in the night with the intelligence that Baum had met and surrendered to the enemy. Next came word that Breyman was engaged in severe and doubtful conflict. Drums beat to arms. The whole camp was roused, and Burgoyne was preparing to march his whole army to Breyman's assistance, when word came in that he was on his way back in safety. The main army remained in camp at the Batten Kiln, but Burgoyne forded that stream and pushed forward until he met Breyman and his troops, haggard and fatigued from hard fighting and incessant marching in the hot weather. Four brass field pieces, nine hundred dragoon swords, one thousand stand of arms, and four ammunition wagons were the fruits of the victory. Thirty-two officers and four hundred and sixty-four privates were taken prisoners. The Americans lost one hundred in killed and wounded. The British killed could not be ascertained, as many had fallen in the woods. Stark remarked, that had there been another hour of daylight, the whole British force would have fallen into their hands.

Tidings of the affair at Bennington reached Washington just before he moved his camp from the neighborhood of Philadelphia, and it relieved his mind of a load of anxiety. In a letter to Putnam he wrote: "As there is not now the least danger of General Howe's going to New England, I hope the whole force of the country will turn out, and by following the great stroke struck by General Stark near Bennington, entirely crush Burgoyne, who seems to be in want of almost everything."

The compliment paid to the troops of Vermont by General Burgoyne, was to this effect: "The district of the New Hampshire Grants, a wilderness little known in the last war, now abounds with the most active, rebellious and hardy race of men on the continent, who hang like a gathering storm, ready to burst on my left." This was written shortly previous to his capitulation. This brilliant double victory at Bennington, by relieving New England from apprehensions, and enabling the patriots to concentrate their forces against Burgoyne, resulted in forcing that General to surrender, on the plains of Saratoga, as noble an army as was ever sent to subdue a country. The news spread through America and Europe, sealed the alliance between France and the United States, and so secured their independence.

In the next chapter we will relate how this timely service of the Green Mountain Boys was requited by Congress. It is not within the range of human wisdom to say what would have been the effect on the American cause, had the demand of New York been complied with, and Stark and Warner been stripped of their commissions before the battle of Bennington. The enemy would have been left to devastate the country at their pleasure, and by diverting the patriot stores in and around Bennington to the use of Burgoyne's army, thereby rendered his position well-nigh impregnable.

CHAPTER XI.

PRIVATE NEGOTIATIONS WITH THE BRITISH.

Brilliant and signal as had been the feats of these Vermonters with the sword, not less so were their acts of diplomacy. One can but be impressed with the spectacle of a handful of men accomplishing by policy what they could never have done by power—for years keeping at bay an army of British troops 10,000 strong, hovering over and in readiness to swoop down and devastate their exposed and unprotected frontier, at the same time the people were permitted to go on unconcernedly about their harvest.

The claims to independence on the part of Vermont were still unacknowledged by Congress, and New York was still importunate and vexatious. The British generals in America endeavored to turn these circumstances to their own account, by detaching Vermont from the cause of the Colonies, and making it a British province. The first intimation that the people of Vermont had of this circumstance was conveyed in a letter from Colonel Beverly Robinson, dated New York, Mar. 30th, 1780, and delivered to Colonel Ethan Allen in the street at Arlington in July. Allen communicated the contents of the letter to Governor Chittenden and some others, but returned no answer.

Meantime, the village of Royalton had been sacked and burned by a party of three hundred Indians under a British officer, four of the inhabitants killed, and twenty-five taken prisoners. It was arranged that the Governor should address a communication to General Haldimand, then commanding in Canada, proposing a cartel for the exchange of prisoners,—the letter to be sent under a flag to the enemy's lines. In October, the British appeared in great force on the lake; such was the alarm that the Legislature, then in session at Bennington, adjourned, many of the members taking arms and hastening to the frontiers.

In a few days Colonel Ethan Allen received a flag from Carleton, with an answer to Governor Chittenden's letter respecting the cartel. With it was

enclosed a proposition for a truce with Vermont. Allen agreed to the proposal on condition that the frontiers of Vermont should include the territory to the Hudson River. This truce, however, was not publicly known; the militia were immediately disbanded and allowed to return home. The militia of New York were also on their frontiers; not being in the secret, they were surprised to see the Vermont troops returning home, and still more to learn that the British were retiring to Canada.

In February, 1781, Colonel Robinson wrote again to Ethan Allen, enclosing a copy of the former letter. He was induced to make another trial, he said, “especially as I can now write with more authority, and assure you, that you may obtain the terms mentioned in the above letter, provided you and the people of Vermont take a decisive and active part with us.”

Allen returned no answer to either of these letters, but enclosed them both in a communication to Congress. In that letter he says: “I am confident that Congress will not dispute my sincere attachment to my country, though I do not hesitate to say I am fully grounded in opinion that Vermont has an indubitable right to agree on terms of a cessation of hostilities with Great Britain, provided the United States persist in rejecting her application for a union with them; for Vermont, of all people, would be most miserable, were she obliged to defend the independence of the United States, and they at the same time at full liberty to overturn and ruin the independence of Vermont. I am as resolutely determined to defend the independence of Vermont, as Congress that of the United States, and rather than fail, will retire with the hardy Green Mountain Boys into the desolate caverns of the mountains, and wage war with the devil, hell, and human nature at large.” This somewhat forcible language was excusable under the circumstances.

Early in that year, Vermont, by a vote of her Legislature, adopted the policy of the States of New York, Massachusetts and New Hampshire, that had been laying claim to the territory of the Grants, and put in her claim of jurisdiction over a large part of each of those States. Thus Vermont was turning the weapons of her antagonists upon themselves. Numbers of representatives from the annexed districts took their seats in the Vermont assembly. At the time of extending her claims, she passed an act of general amnesty; this liberal and wise act of lenity had the desired effect.

The State of Vermont was at this time in a forlorn condition; torn by intestine divisions and the intrigues of her enemies in Congress: all the cannons, nay, every spade and pickaxe taken by her valiant sons at Ticonderoga and Crown Point were removed out of the State to Fort George; Colonel Warner's regiment, raised in and for the protection of Vermont, was put into Continental service, and stationed to defend the frontiers of New York, not half so much exposed as Vermont; at the same time New York had recalled her State troops from Skenesborough, while an enemy, by coming up Lake Champlain, might land within a day's march of hundreds of inhabitants who were remaining on their farms. Congress had interfered with the internal policy of Vermont, by cutting off her ways and means of raising money and men for self defense by the following: "Resolved, unanimously, that in the opinion of this body, no unappropriated lands or estates, which are or may be adjudged forfeited, or confiscated, lying in said district [Vermont], ought, until the final decision of Congress in the premises, be granted or sold." We transcribe, on this topic, the words of Ira Allen:

"Thus left, as she had reason to suppose, by the intrigues of those who claimed and coveted her fertile soil, to be a prey to the common enemy, similar to the fate of their brethren, descendants from Connecticut, who settled at Wyoming and Susquehanna, and were mostly killed by a party of Indians; their towns and villages burned, and their country depopulated (supposed to be through the intrigues of land-jobbers), which has since become a prey to the Pennsylvania claimants, a junto similar to the New York monopolists, who were then taking every measure that the malignancy and avarice of human nature could suggest, for the destruction of the people of Vermont." That there was some foundation for this explanation of the Wyoming massacre, is made only too apparent by subsequent events.

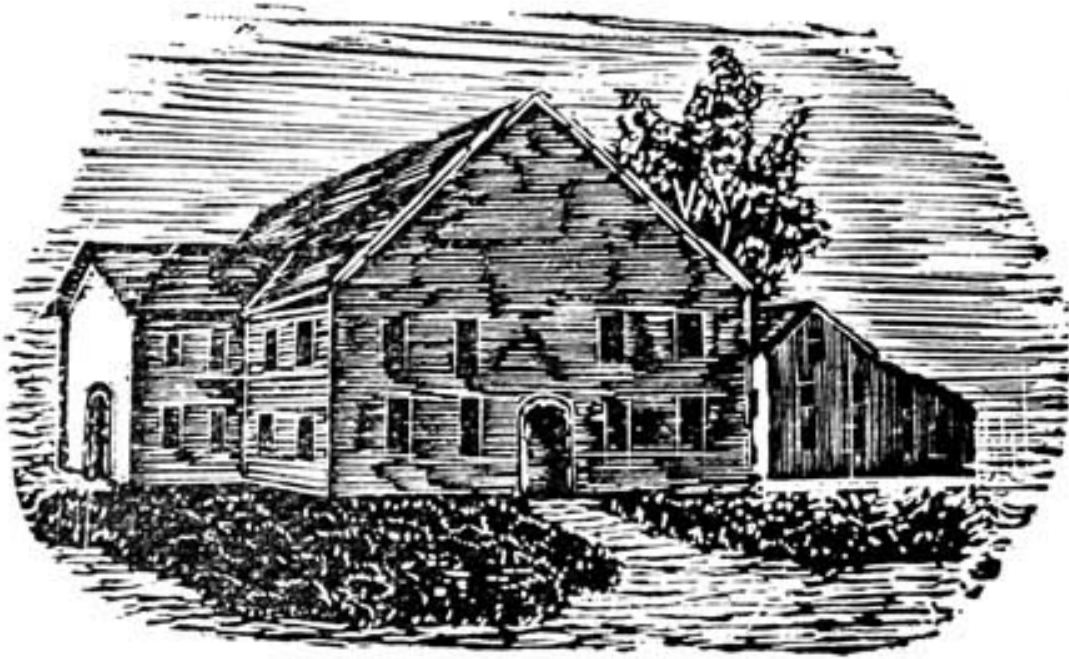
In April, 1781, Colonel Ira Allen was commissioned to settle a cartel with the British in Canada for the exchange of prisoners, and also to procure an armistice between the British forces and Vermont. This was thought well-nigh impracticable, as the British troops numbered 10,000 effective men, which must remain inactive, not being able to annoy other States without first annoying Vermont, while the latter had only 7,000 men as an offset. But an armistice must be had, or the frontiers evacuated until assistance

could come from the States whose influence had rendered Vermont defenseless.

Allen arrived at Isle Aux Noix in due time, and was accorded apartments by Major Dundas, the officer in charge. At a convenient time Allen observed that Congress was endeavoring to bring Vermont into subjection to New York, but that they, rather than yield, would see Congress subjected to the British government, provided that Vermont could be a distinct colony under the Crown on safe and honorable terms; and that the people were not disposed longer to assist a government which might subject them and their posterity to New York, under which they could never be safe in person or property.

The replication to these observations was, that the territory of Vermont could be a colony under the Crown, with privileges equal to those enjoyed by any other colony, and that those who assisted in effecting such an event, would be duly honored and rewarded. Much conversation passed on the subject, of which General Haldimand was duly informed. Nothing decisive was accomplished, but the negotiation caused the army to remain inactive, which was a matter of congratulation to Allen.

The cartel was completed, and a verbal agreement entered into that hostilities should cease between Great Britain and those under the jurisdiction of Vermont, until after the sitting of the Legislature of that state. On Colonel Allen's return several influential people waited on him, desiring to be advised whether to remain or remove to the interior portions of the country. Allen told them to remain quiet on their farms, and not think it strange though they had no army to protect the frontier; and that should any event make it necessary, for the safety of their families, to move, they might depend on seasonable information. This immunity of Vermont from the aggressions of the British, led the people on the borders to be all the more anxious to be annexed to her territory, as a measure of safety to their families and to their property.



First Church in Vermont.

Grave suspicions having become rife that negotiations were being carried on between Vermont and the British in Canada, several men of discernment among the Whigs were sent from Vermont and the neighboring States to attend the sessions of the Legislature, to watch if there might be measures pursuing which would be eventually injurious to the common cause of the United States.

On the other hand, the British in Canada were anxious to know whether Allen and his friends would be faithful, and so conduct matters as to justify a cessation of hostilities. With these objects in view, their representatives attended the sessions; as the Assembly convened in the meeting house the spectators took seats in the galleries.

In a few days both houses joined in a committee to consider the subject of Ira Allen's mission to Canada. The Governor proceeded to state the facts of the settlement of the cartel, and that if further particulars were desired, Colonel Allen was then present and could best inform them. On being requested to speak, Allen made his statement, which showed the British had exhibited great generosity in the transaction; and after stating sundry things, concluded with the remark that if any member, or auditor in the gallery, wished to ask further questions, he was ready to answer them.

Those who were in the interest of the United States paid their compliments to Allen for his open and candid conduct. In the evening he had a conference with the Canadian spectators, who seemed to be equally well pleased.

In July, Ethan Allen was informed by one of his neighbors that some of his friends from Canada wished to speak with him in the dusk of the evening of that day. At the time appointed, Allen, with only his cane in hand, cheerfully went to a British guard under arms, and received a packet. In the evening of the following day he met them again and returned an answer. This mode of correspondence was continued; and whenever dispatches came in this way, General Ethan Allen or Colonel Ira Allen (they lived in the same house) went and received them and returned an answer, not trusting the dispatches to any other person. It is worthy of remark that Sunderland, their place of residence, was more than sixty miles from the frontiers, yet a sergeant and guard frequently passed with their arms in 1781 and 1782, without being discovered by any one who would inform against them.

About this time there appeared in the newspapers of the day a letter from Lord George Germain to Sir Henry Clinton, dated Whitehall, Feb. 7th, 1781, which letter had been captured by the French and carried to Paris, from whence it had been forwarded to Congress, and by them ordered to be printed. It ran thus:

“The return of the people of Vermont to their allegiance is an event of the utmost importance to the King’s affairs; and at this time, if the French and Washington really meditate an irruption into Canada, may be considered as opposing an effectual barrier to the attempt. General Haldimand, who has the same instructions with you to draw over those people, and give them support, will, I doubt not, push up a body of troops to act in conjunction with them, to secure all the avenues through their country into Canada; and when the season admits, take possession of the upper parts of the Hudson and Connecticut Rivers, and cut off the communication between Albany and the Mohawk country. How far they may be able to extend themselves southward or eastward must depend on their numbers, and the disposition of the inhabitants.”

This letter had greater influence on Congress than all other considerations that had yet been brought to bear; and that body promptly directed that a

committee be appointed to confer with a like committee from Vermont, “on what terms it may be proper to admit Vermont into a federal union of these States.”

Accordingly, Vermont sent on her committee; while they were in Philadelphia they procured a copy of a letter from the Governor of New Hampshire to the President of Congress, stating that his State could not furnish its quota of men or money in support of the war, as a third part of the State had revolted and joined Vermont. This draft Allen transmitted to the British Commissioners at Skenesborough, who laughed heartily with the Vermont committee.

Those who are disposed to regard this action of Allen and his associates as inimical to the cause of American Independence, will do well to consider that the effect was to neutralize the strength of 10,000 British troops as opposed to a like number from Vermont; the final result to the cause would be the same as though both forces took the field and slaughtered each other, with the advantage to Vermont that she was saved from being overrun by a devastating army.

Meanwhile the British Commissioners were becoming impatient. They stated as their instructions, which they were not at liberty to deviate from without putting an end to the armistice, that his Excellency, General Haldimand, in pursuance of full powers vested in him by his Majesty, should issue his proclamation offering to confirm Vermont as a colony under the Crown, provided the people would return to their allegiance; that an army should come up the Lake in October with said proclamation, and the Legislature must accept the same, and with the British take measures for their common defense.

This was a sore strait for perplexed Vermont diplomats. It was deemed best, however, to have the proclamations brought up the Lake rather than incur the risk of a discontinuance of the armistice, in the present defenseless state of the frontier.

The Legislature met at Charlestown early in October, and about the same time a powerful British army under St. Leger was landed at Ticonderoga. A skirmish having occurred between a party of Vermonters under command of Sergeant Tupper and a number of the enemy, the Sergeant was killed and his men retreated. St. Leger sent his clothes and effects, with an open letter,

to General Enos, informing him of the fate of the Sergeant, and apologizing for his death. This dispatch and the apparel were publicly delivered to General Enos, which made no little noise among the troops.

The preceding negotiations were not known to more than a dozen men in Vermont. An express came in with letters for Governor Chittenden, announcing the arrival of the British at Ticonderoga, in which were blended public matters and private negotiations. The messenger had not failed to proclaim the extraordinary message of St. Leger, which occasioned large crowds to follow, to hear the news. On opening the letters the Governor saw it was not prudent to have them publicly read. At this confused moment Major Runnals came running in and demanded of Colonel Allen the reason why St. Leger was sorry the Sergeant was killed? Allen replied he could not tell. Runnals repeated the question, to which Allen then made an evasive answer. This enraged Runnals, who again loudly demanded what reasons could possibly induce a British general to be sorry when his enemies were killed? Allen retorted with some warmth by advising Runnals to go at the head of his regiment and demand of St. Leger the reasons for his sorrow, and not stay there eating up the country's provisions and doing nothing while the frontiers were invaded. This manœuvre drew all attention, for the moment, from the letters. Meanwhile new ones were made out which were read in place of the originals for the satisfaction of the people.

The crisis is approaching, yet the leaders in the stirring drama are not dismayed. A communication from Allen to the British announces that matters are going on propitiously for their designs, but in view of unfavorable reports direct from the seat of war, suggested it would hardly be expedient to publish the proclamation just then. In less than an hour after this communication reached Ticonderoga, an express arrived there with the news of the capture of Cornwallis and his entire army. Before night the British had embarked all their troops and stores, and had set sail with all haste for Canada. Thus were the Vermont diplomatists relieved, at the last moment, from their embarrassment and danger; and thus were the frontiers of that State preserved from the horrors of war by the sagacity and daring of a few determined men.

CHAPTER XII.

CONCLUSION.

Years elapsed. Hostilities between Great Britain and the American Colonies had ceased; and on the 20th of January, 1783, the preliminary articles of peace were signed, which established the independence of the United States. The adoption of the Federal Constitution followed, which was ratified by the thirteen original States, and the first Congress assembled under it March 3d, 1789. During the period succeeding the peace, Vermont had been pursuing the even tenor of her way, not over-solicitous about an organic union with the States, and without any external foes to dread. But the ancient difference with New York still remained unsettled. A new political generation had come upon the stage, in whose bosoms the bitter feuds of their fathers were not perpetuated.

One difficulty, however, presented itself. New York had aforetime granted large tracts of land in Vermont, and the grantees were loudly complaining of the injustice in not being allowed to take possession of the property, or having its purchase price refunded. New York felt no very strong obligation to refund the money that had been extorted for those grants by royal governors before the war; still she was disposed to favor a compromise. Public opinion and mutual interests called for a reconciliation with Vermont, and her admission into the Confederacy of States, inasmuch as the measure would increase the representation of New England in Congress.

On the 23d of October, 1789, committees from the respective Legislatures of Vermont and New York met to arrange the settlement of the only issue remaining—the amount of compensation the claimants under the New York grants should receive from Vermont. It was agreed that on payment being made to her of \$30,000, New York was to consent to the admission of Vermont into the Union, and to give up all claims to jurisdiction within the latter State. On the 18th of February, 1791, Congress, without a dissenting voice or vote, passed an Act “That on the 4th day of March, 1791, the said State, by the name and style of the ‘State of Vermont,’ shall be received and

admitted into their Union as a new and entire member of the United States of America.”

THE END.

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FOOTNOTES:

[A] In 1763, Rev. Samuel Peters, the first clergyman who paid a visit to the thirty thousand settlers in that country, in the presence of a number of landed proprietors, performed the ceremony of giving a new name to the province, “on the top of a rock standing on a high mountain, then named Pisgah, because it provided the company a clear sight of Lake Champlain to the west, and of the Connecticut River to the east, and which overlooked all the trees and hills in the vast wilderness at the north and south,” ... which new name is “Verd Mont,” in token that her mountains and hills shall ever be green and never die. He then poured the spirits about him and cast the bottle at the rock. The ceremony being over, the company descended Mount Pisgah and took refreshments in a log house, kept by Captain Otley, where they spent the night with great pleasure.—Hist. Mag.

[B] Should read “Beekman’s” Patent, in Dutchess County, probably in the present town of Pawling.

[C] An expression signifying an application of the beech rod.

[D] Irving describes Allen as “well-fitted for the enterprise by his experience as a frontier champion, his robustness of mind and body, and his fearless spirit. He had a rough kind of eloquence, also, that was very effective with his followers.” “His style,” says another who knew him personally, “was a singular compound of local barbarisms, scriptural phrases, and oriental wildness: and though unclassic, and sometimes ungrammatical, was highly animated and forcible.” General Washington wrote, “there is an original something in him which commands attention.”

[E] Ira Allen’s History of Vermont.

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